



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 10431 (EXTENSION)
FIRST REVISION November 2, 1990

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 10431 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to June 30, 1994. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.

in *Suzanne Helgeson*
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

JUL 30 1992

(DATE)

Dist: FHWA FRA USCG

EXEMPTION HOLDER

APPLICATION DATE

Bowater Drums Limited
Cheshire, United Kingdom
(U.S. AGENT: Sonoco Fiber Drum, Co.
Lombard, IL)

June 24, 1992



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NOV 2 - 1990

400 Seventh Street, S.W.
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DOT-E 10431
(FIRST REVISION)

1. Bowater Drums Limited, Cheshire, England, (U.S. Agent: Sonoco Fiber Drum Co., Lombard, Il.) is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to manufacture, mark and sell the packages described in paragraph 7 below for use in the transportation in commerce, of a flammable liquid and flammable solid described in paragraph 3 below subject to the requirements specified herein. This exemption authorizes the manufacturing, marking and sale of a non-DOT specification fiber drum, similar to a DOT 21C except the bottom head may be made of low density polyethylene, for the transportation of certain flammable liquids and flammable solids, and provides no relief from any regulations other than as specifically stated.

2. BASIS. This exemption is based on an application from Bowater Drums Limited dated July 31, 1990, submitted in accordance with 49 CFR 107.103 and the public proceeding thereon.

3. HAZARDOUS MATERIALS (Descriptor and Class). Nitrocellulose, colloided, granular or flake, wet with not less than 20% water, classed as a flammable solid; Nitrocellulose, wet with not less than 30% alcohol or solvent, classed as a flammable liquid; Lacquer base, or lacquer chips, dry, classed as a flammable solid.

4. PROPER SHIPPING NAME (49 CFR 172.101). Specific chemical name or generic commodity description, as appropriate.

5. REGULATION AFFECTED. 49 CFR 173.127; 173.175; 173.184; 178.224.

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight, and cargo vessel.

7. SAFETY CONTROL MEASURES. Packaging prescribed is a non-DOT specification fiber drum of not over 55 gallons capacity having the specifications described in the letter, test reports and drawing included in petitioner's application dated July 30, 1990. Each drum must conform to DOT Specification 21C, except the bottom head may be made of injection molded linear low density polyethylene having a minimum thickness of 2.00 mm (0.08) inch.

NOV 2 - 1987

Continuation of 1st Rev. DOT-E 10431

Page 2

Details of the bottom head must be as specified in Bowater Packaging Ltd. Drawing MA3.391 dated November 1, 1986, filed with the application. Each drum must be lined with polyethylene with a minimum thickness of 0.10 mm.

8. SPECIAL PROVISIONS.

a. Offerors for transportation of hazardous materials specified in this exemption may use the packaging described in this exemption for the transportation of such hazardous materials so long as no modifications or changes are made to the packages, all terms of this exemption are complied with, and a copy of the current exemption is maintained at each facility from which such offering occurs.

b. Shippers using the packaging covered by this exemption must comply with the shipping paper, marking, labeling, and placarding requirements of 49 CFR Part 172; all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 100-180.

c. Each drum must be marked in accordance with 49 CFR 178.224-4, except that the marking "DOT-E 10431" must be displayed in place of "DOT-21C."

d. A copy of this exemption must be carried aboard each vessel used to transport packages covered by this exemption.

e. A copy of this exemption, in its current status, must be maintained at each manufacturing facility at which this packaging is manufactured and must be made available to a DOT representative upon request.

f. Each packaging manufactured in accordance with the requirements of this exemption must be marked in a manner which identifies the physical location (city and state) of the facility at which it is manufactured.

9. REPORTING REQUIREMENTS. Any incident involving loss of packaging contents or packaging failure must be reported to the Associate Administrator for Hazardous Materials Safety as soon as practicable.

10. EXPIRATION DATE. September 1, 1992.

Issued at Washington, D.C.:

NOV 2 - 1990

(DATE)

J. Suzanne Wedgworth
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

Address all inquiries to: Associate Administrator, for Hazardous
Materials Safety, Research and Special Programs Administration,
U.S. Department of Transportation, Washington, D.C., 20590.
Attention: Exemptions Branch.

Dist: USCG, FHWA, FRA.